

		The prayer for punitive damages is adequately supported by the fifth cause of action for fraudulent concealment – inducement. (<i>Stevens v. Superior Court (St. Francis Med. Ctr.)</i> (1986) 180 Cal.App.3d 605, 610 [a properly pled fraud claim will itself support recovery of punitive damages].) Defendant shall give notice of all of the above.
8	Professional Registry Network Corporation vs. KPC Healthcare, Inc. 2026-01567102	Application for Right to Attach Order/Writ of Attachment The application by plaintiff Professional Registry Network Corporation for a right to attach order is GRANTED in the amount of \$74,496.80, representing the outstanding principal amount of \$74,466.80 and costs of \$520.00. (Code Civ. Proc., §§ 483.010, 484.090.) Defendant’s evidentiary objections to 4:23-25 and 5:1-2 of the Makridis Decl. in support of the application (i.e. ¶¶ 34 and 36) are SUSTAINED [lacks foundation, lacks personal knowledge]. Defendant’s remaining objections are OVERRULED. Plaintiff has demonstrated the probable validity of its first cause of action for breach of an implied contract in the amount of \$74,466.80, as well as an additional estimated \$520.00 in costs. (<i>Otworth v. Southern Pacific Transportation Co.</i> (1985) 166 Cal.App.3d 452, 458 [breach of contract elements]; <i>Aton Center, Inc. v. United Healthcare Ins. Co.</i> (2023) 93 Cal.App.5th 1214, 1230 [“breach of implied contract has the same elements as does a cause of action for breach of contract, except that the promise is not expressed in words but is implied from the promisor's conduct;” citation omitted; Civ. Code, § 1621 [“An implied contract is one, the existence and terms of which are manifested by conduct.”]; Makridis Decl. in support of application, ¶¶ 5-7, 11-16, 27-31, 35; Ex. A thereto [account statement, invoices].) The court finds that plaintiff has shown a right to attach the property described at ¶ 9(c) of the Application. (Code Civ. Proc., §§ 483.010, subds. (a), (c), and 484.090, subd. (a).) The court orders that a writ of attachment in the amount of \$74,496.80 shall issue against the property described at ¶ 9(c) of the Application, upon plaintiff’s filing of an undertaking in the amount of \$10,000.00. (Code Civ. Proc., §§ 489.210, 489.220.) Moving party’s request for the attachment to include \$30,000.00 in estimated attorney fees, and \$10,000.00 in estimated prejudgment

		interest, is DENIED as inadequately substantiated. (Code Civ. Proc., § 482.040 [facts in supporting affidavit “shall be set forth with particularity”].) The court also observes that plaintiff’s attorney fee request relies on an attorney fee provision in the “Business Associate Agreement” providing for attorney fees in the event of a “breach of ... obligations under this Agreement.” (Makridis Decl., ¶ 32; Ex. B, thereto, Section 6.1.) However, that agreement applies to the use and disclosure of “Protected Health Information,” not the unpaid services at issue here, which the evidence shows is the subject of a separate implied-in-fact agreement, as noted above. Moving party to give notice.
9	Sanchez vs. Martinez 2025-01463096	Motion for Determination of Good Faith Settlement Continued to September 24, 2026 at 8:30 a.m. in Department C44.
10	Whitewolf vs. Beachwalk Homeowners Association 2023-01346511	Motion to Enforce Settlement Motion for Good Faith Settlement Defendant USAA Casualty Insurance Company’s Motion to Enforce Settlement Agreement is DENIED. Moving Defendant has failed to show “a writing signed by the parties outside of the presence of the court” or an oral stipulation made before the court for settlement of the case. (Code Civ. Proc. §664.6, subd. (a).) Defendant USAA Casualty Insurance Company’s Motion for a determination of good faith settlement is DENIED because Moving Defendant has failed to establish that Plaintiff has agreed to settle her claim against Moving Defendant. Moving Defendant asserts that Plaintiff has entered into a binding agreement to settle her dispute with Moving Defendant based upon (1) a statement in an email from Plaintiff’s counsel that Plaintiff “will” agree to settle the claim and requesting Defendant to prepare a settlement agreement for her consideration and (2) a statement made by Plaintiff’s counsel at the hearing on the OSC re: sanctions for Defendant’s counsel’s failure to appear that Plaintiff had settled her claims against Moving Defendant. This is not sufficient to meet the requirements of Code Civ. Proc. §664.6, subd. (a). There is no written stipulation signed by Plaintiff or her counsel that indicates a stipulation to settle Plaintiff’s claims